

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOEL SOTO,

Index No.

Plaintiff,

Plaintiff designates

-against-

Bronx County as the place of trial

THE CITY OF NEW YORK, individually and officially in
their capacities as New York City Police Officers, JAMES
GILSON, WILFREDO BURGOS, DANIEL HOGAN and
JOHN or JANE DOE 1-10,

The basis of the venue is where the
injury occurred

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
December 13, 2019



SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard - Suite 201

Bayside, New York 11361

T: (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer JAMES GILSON
Shield # 8085, Tax ID 932711
At 34th NYPD PCT., Detective Squad
4295 Broadway
New York, NY 10033

Police Officer WILFREDO BURGOS
Shield # 13254, Tax ID 953710
At 34th NYPD PCT.
4295 Broadway
New York, NY 10033

Police Officer DANIEL HOGAN
Shield # 14209, Tax ID 961820
At 34th NYPD PCT.
4295 Broadway
New York, NY 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOEL SOTO,

Plaintiff,

Index No.

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, individually and officially in
their capacities as New York City Police Officers, JAMES
GILSON, WILFREDO BURGOS, DANIEL HOGAN and
JOHN or JANE DOE 1-10,

Defendants.
-----X

Plaintiff, Joel Soto, by and through the undersigned attorneys, Sim & DePaola, LLP, for
his complaint against the Defendants, City of New York, individually and in their official
capacities as New York City Police Officers, James Gilson, Wilfredo Burgos, Daniel Hogan and
John or Jane Doe 1-10, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief, vis-à-vis 42 U.S.C. §§ 1983,
1985, 1986 and 1988, the common law of the State of New York, in addition to the self-
executing clauses or implied private causes of action within the New York State Constitution, for
the violations of his civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and
Fourteenth Amendments to the Constitution of the United States, as well as the Laws and
Constitution of the State of New York.

2. The following claims arise from two incidents which occurred on September 26, 2018
and September 27, 2018. On September 26, 2018, Defendants including Gilson, Burgos, Hogan
and John or Jane Doe 1-10 approached Plaintiff's vehicle without probable cause and without
any other legal right to do so and then unlawfully demanded that Plaintiff exit his vehicle.

Plaintiff was in great fear of being assaulted and battered by Defendants and fled the area. On September 27, 2018, Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10 acting under color of state law, unlawfully arrested and detained Plaintiff, inside of 367 South 2nd Street, Apt. 3C, within the County of Kings, and State of New York. Defendants including Gilson, Burgos, Hogan and John or Jane Doe 1-10 committed multiple assault and batteries to Plaintiff's person in violation of his civil right to be free from excessive force. Plaintiff was subsequently charged with assault and other related charges. As a result, Plaintiff was deprived of his liberty and suffered various physical, emotional and psychological injuries. Plaintiff was wrongfully detained for approximately three (3) days, primarily incarcerated within the Manhattan Detention Complex, colloquially known as "The Tombs," located at 125 White Street, New York County, New York.

3. At all times here mentioned, Defendants including Gilson, Burgos, Hogan and John or Jane Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Within 90 of the claims herein, Plaintiff timely serve a notice of claim, upon the City of New York.

5. Over 30 days have elapsed since the filing of this notice, and this matter has not been settled or otherwise disposed of.

6. Plaintiff has complied with municipal Defendants' request for an oral examination, pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

7. This action and associated claims have been timely commenced within all applicable statutes of limitations.

8. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and reasonable attorneys' fees, and such other and further relief as this Court may deem just and proper.

PARTIES

9. Plaintiff, Joel Soto ("Plaintiff"), presently resides at 367 South 2 Street, Apt. 3C, Brooklyn, NY 11211.

10. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

11. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD") or the Kings County District Attorney's Office ("KCDA"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD and Kings County District Attorney's Office Defendants herein.

12. In addition, at all times here relevant, Defendant, City, was responsible for enforcing the rules or regulations of the NYPD and KCDA, and for ensuring that the NYPD and KCDA personnel obey the laws and constitutions of the United States and the State of New York.

13. Defendant, James Gilson, was, at all times here relevant, a police officer employed by the NYPD and, as such, was acting in the capacity of an agent, servant and employee of the Defendant, City of New York. Defendant Gilson was, at the times relevant herein, a police officer, under Shield No. 8085 and Tax Id Number 932711, assigned to 34th NYPD Precinct

Detective Squad, located at 4295 Broadway, New York, NY 10033. Defendant Gilson is being sued in his individual and official capacities.

14. Defendant, Wilfredo Burgos, was, at all times here relevant, a police officer employed by the NYPD and, as such, was acting in the capacity of an agent, servant and employee of the Defendant, City of New York. Defendant Burgos was, at the times relevant herein, a police officer, under Shield No. 13254 and Tax Id Number 953710, assigned to 34th NYPD Precinct, located at 4295 Broadway, New York, NY 10033. Defendant Burgos is being sued in his individual and official capacities.

15. Defendant, Daniel Hogan, was, at all times here relevant, a police officer employed by the NYPD and, as such, was acting in the capacity of an agent, servant and employee of the Defendant, City of New York. Defendant Hogan was, at the times relevant herein, a police officer, under Shield No. 14209 and Tax Id Number 961820, assigned to the 34th NYPD Precinct, located at 4295 Broadway, New York, NY 10033. Defendant Hogan is being sued in his individual and official capacities.

16. At all relevant times, Defendants John or Jane Doe 1-10 were police officers, detectives, supervisors, policymakers or officials employed by the NYPD, KCDA or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants, John or Jane Doe 1-10, as such knowledge is within the exclusive possession of Defendants.

17. At all relevant times herein, Defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, KCDA or the NYPD. Defendants John or Jane Doe 1-10 are being sued in their individual and official capacities.

18. At all relevant times herein, Defendants including Gilson, Burgos, Hogan and John or Jane Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

19. On, or about, September 26, 2018, at approximately 3:38 a.m., in the vicinity of the corner of West 193rd Street and Broadway Terrace, Plaintiff was lawfully sitting in his vehicle, as he had not committed any crime or violation of the law and had not violated any traffic infractions.

20. At said date, time, and location, Plaintiff was approached by Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, who had no legal grounds for approaching him.

21. Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, then began demanding that Plaintiff exit his vehicle without providing him with the legal reason or grounds for doing so.

22. Plaintiff then asked the Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10 why he was being stopped and why he was being asked to step out of the vehicle.

23. Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, refused to answer said questions and then became visibly irate and aggressive without any justifiable reason in doing so.

24. Plaintiff became extremely scared by the officers' actions and demeanor and feared he would be attacked and brutally beaten by the officers.

25. Plaintiff then drove away because he was scared and feared for his life.

26. On, or about, September 27, 2018, at approximately 6:00 a.m., Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, came to Plaintiff's home and entered said home located at 367 South 2nd Street, Apt. 3C, Brooklyn, New York 11211, without an arrest warrant, search warrant or other legal right to do so.

27. Plaintiff was unlawfully placed in handcuffs, illegally searched and unlawfully arrested by Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10.

28. Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, committed multiple assault and batteries to Plaintiff's person, including but not limited to being punched and kicked while Plaintiff was in handcuffs, resulting in contusions, abrasions, and lacerations all about claimant's body including severe sprains to both ankles.

29. Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, committed said assault and batteries to Plaintiff's person in violation of Plaintiff's civil right to be free from excessive force by Defendants' officers.

30. Defendant Gilson was Plaintiff's arresting officer and signed the criminal court complaint against him, in which he perjurally accused Plaintiff of assault and other related charges, despite his knowledge that said allegations were completely untrue.

31. Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, offered false testimony to the District Attorneys' Office, namely that he observed Plaintiff committing assault.

32. At no point did Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, ever observe Plaintiff commit any crime or violation of the law.

33. At no point did Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, ever possess, recover or observe any evidence reasonably calculated to establish or prove that Plaintiff intent to cause physical injury to another person.

34. Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, participated in the investigation that resulted in the unlawful arrest of Plaintiff.

35. Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, forwarded false information to the Kings County District Attorney's Office, namely that Plaintiff had committed assault, as well as the aforementioned fabricated evidence against Plaintiff, despite each Defendant being fully aware of Plaintiff complete innocence.

36. Defendant James Gilson ("Gilson") arrested Plaintiff under Criminal Docket No. 2018NY039136 and Arrest No. M18650181.

37. Defendant James Gilson ("Gilson"), was the police officer, who handcuffed, arrested, searched and questioned Plaintiff without probable cause, as he was fully aware, at all times, that Plaintiff had not committed any crime or violation of the law.

38. Plaintiff was subjected to an unlawful strip-search during his time in custody, by or at the direction of, Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10.

39. Defendants, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, arrested and caused a criminal prosecution to be initiated against Plaintiff, because of their desires to use Plaintiff's arrest and criminal prosecution as leverage to their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

40. Defendants', including Gilson, Burgos, Hogan and John or Jane Doe 1-10, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiff by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

41. As a result of Defendants', including Gilson, Burgos, Hogan and John or Jane Doe 1-10's fabrications, Plaintiff was caused to remain unlawfully detained after his arraignment, as well as be subjected to other restrictions placed upon his liberty.

42. Subsequent to his arraignment, Plaintiff was transferred to the Manhattan Detention Complex, also known as "The Tombs," in New York County, where he remained for approximately three (3) days.

43. Plaintiff was subjected to said unlawful restrictions upon his liberty, until he was released on September 29, 2018.

44. Plaintiff asserts that the Defendants', including Gilson, Burgos, Hogan and John or Jane Doe 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

45. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

46. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

47. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

48. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars."

Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

49. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

50. Other articles include: (i) "Testifying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came From the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

51. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

52. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff’s arrest without probable cause.

53. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

54. Defendants’ actions, pursuant to Plaintiff’s underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff’s civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without

the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

55. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

56. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

57. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Gilson, Burgos, Hogan and John or Jane Doe 1-10.

58. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein.

59. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct

60. The aforementioned acts of Defendants, including the City, including Gilson, Burgos, Hogan and John or Jane Doe 1-10, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

61. As a direct or proximate result of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law

62. The above paragraphs are here incorporated by reference as though fully set forth herein.

63. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

64. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

65. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

66. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

67. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

68. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

69. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

70. The above paragraphs are here incorporated by reference as though fully set forth herein.

71. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause to do so.

72. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

73. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

74. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

75. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

76. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

77. The above paragraphs are here incorporated by reference as though fully set forth herein.

78. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

79. Plaintiff was conscious of his confinement.

80. Plaintiff did not consent to his confinement.

81. Plaintiff's arrest and false imprisonment was not otherwise privileged.

82. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

83. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

84. The above paragraphs are here incorporated by reference as though fully set forth herein.

85. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

86. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

87. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

88. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

89. The above paragraphs are here incorporated by reference as though fully set forth herein.

90. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

91. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent or justification.

92. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

93. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

95. The above paragraphs are here incorporated by reference as though fully set forth herein.

96. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

97. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

98. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

99. The above paragraphs are here incorporated by reference as though fully set forth herein.

100. Defendants initiated the prosecution against Plaintiff.

101. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

102. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

103. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

104. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.

105. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

106. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

107. The above paragraphs are here incorporated by reference as though fully set forth herein.

108. Defendants initiated the prosecution against Plaintiff.
109. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.
110. Defendants acted with malice, which, in the absence of probable cause, may be inferred.
111. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.
112. Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights by causing Plaintiff to remain unlawfully incarcerated after his arraignment and trial by jury
113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

114. The above paragraphs are here incorporated by reference as though fully set forth herein.
115. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
116. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
117. Defendants intended to inflict substantial harm upon Plaintiff.
118. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
119. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

121. The above paragraphs are here incorporated by reference as though fully set forth herein.
122. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
123. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
124. Defendants intended to inflict substantial harm upon Plaintiff.
125. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
126. Defendants' actions deprived Plaintiff of his constitutional rights to free from illegal searches and seizures and to not be deprived of his liberty without the due process of law.
127. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

128. The above paragraphs are here incorporated by reference as though fully set forth herein.
129. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.
130. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement.

131. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to the Sixth Amendment to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

132. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

133. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

134. The above paragraphs are here incorporated by reference as though fully set forth herein.

135. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the New York County District Attorney's Office.

136. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement.

137. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to the Sixth Amendment to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

138. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under
42 U.S.C. §§ 1983, 1985 and 1986 Against Individual Defendants

139. The above paragraphs are here incorporated by reference as though fully set forth herein.

140. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

141. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

142. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

143. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

144. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

145. Accordingly, Defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and/or Fourteenth Amendments to the United States Constitution.

146. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

147. The above paragraphs are here incorporated by reference as though fully set forth herein.

148. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

149. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

150. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

151. The above paragraphs are here incorporated by reference as though fully set forth herein.

152. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

153. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

154. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

155. The above paragraphs are here incorporated by reference as though fully set forth.

156. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

157. Defendant City breached those duties of care.

158. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

159. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

160. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.

161. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION
Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City

162. The above paragraphs are here incorporated by reference as though fully set forth.

163. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

164. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

165. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

166. Defendant City's employees engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and

equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

167. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

168. Defendant City's conduct caused the violation of Plaintiff's civil rights enumerated within the Constitution of the United States.

169. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

- s) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: December 13, 2019

Respectfully submitted,



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ATTORNEY VERIFICATION

I, Peter Sim, an attorney admitted to practice in the courts of New York State, state that I am a partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
December 13, 2019



PETER SIM, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JOEL SOTO,

Plaintiff,

-against-

THE CITY OF NEW YORK, individually
and officially in their capacities as New York City
Police Officers, JAMES GILSON, WILFREDO BURGOS,
DANIEL HOGAN, and JOHN or JANE DOE 1-10,

Defendants

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: PETER SIM

Attorney for Plaintiff(s)

42-40 Bell Boulevard

Bayside, NY 11361

Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for